



POLICE DEPARTMENT

March 17, 2026

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Mohammad Abdelfattah :

Tax Registry No. 965915 :

Intel-MSS- Uniformed Operations Unit :

Case No.

C-032701

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At: Police Headquarters  
One Police Plaza  
New York, NY 10038

Before: Honorable Anne E. Stone  
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Nicole Jardim, Esq.  
Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

For the Respondent: Seema Iyer, Esq.  
Martinez & London, LLP  
111 John Street, Suite 640  
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH  
POLICE COMMISSIONER  
ONE POLICE PLAZA  
NEW YORK, NY 10038

## CHARGES AND SPECIFICATIONS

1. Police Officer Mohammad Abdelfattah, on or about August 3, 2023, at approximately 11:45 p.m., while assigned to PSA 3 and on duty, in the vicinity of the parking lot of 433 Lafayette Avenue in Brooklyn, Kings County wrongfully used force, in that Officer Abdelfattah restricted [Complainant's] breathing by holding her sweatshirt against her neck, without police necessity.

P.G. 221-02, Page 2, Prohibitions 11 & 12

FORCE GUIDELINES

## REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 12, 2026. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The CCRB introduced into evidence the hearsay statement that [redacted] ("Complainant") made to their investigator, as well as body-worn camera footage of the incident. Respondent called Police Officer Keith Meisner as a witness and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty and recommend the forfeiture of 10 vacation days.

## ANALYSIS

The events underlying the charges in this matter were captured by body-worn camera and are largely undisputed. On August 3, 2023, at approximately 2345 hours, Complainant was sitting in her car in the parking lot of 433 Lafayette Avenue in Brooklyn when members of the Warrant Section pulled up behind her in an unmarked minivan. They identified Complainant and attempted to take her into custody based on open I-Cards. Complainant resisted being handcuffed and the officers requested additional units to assist with a crowd that had gathered.

Respondent, Police Officer Keith Meisner, and Sergeant Ramos drove to the location. Respondent began attempting to get the crowd under control. He moved them away from the officers who were struggling to handcuff Complainant, who was yelling, thrashing, and kicking. After they placed her on the hood of a parked vehicle, Respondent came over and held onto one of Complainant's legs. The officers managed to handcuff Complainant behind her back and then pulled her to a standing position. Complainant continued to be uncooperative, screaming, and pulling her body away from the officer who was walking her towards the unmarked van. Respondent was waiting at the open door of the RMP. Complainant continued resisting as she was brought to the open car door. Another officer arrived and placed her hands on Complainant's back and arm. At the same time, Respondent reached out with his left hand, grabbed and pulled the hood of Complainant's sweatshirt upwards while she faced the car door. Respondent continued to hold Complainant's shirt in this manner as he and the other two officers lifted her up and tried to push her forward into the car. Complainant braced her feet against the doorframe and pushed backwards. The struggle continued for several more seconds, until the officers decided to move Complainant to a marked RMP equipped with a partition between the front and rear seats. (Tr. 20-31, 69-72; CCRB Exs. 1 at 01:17-01:57 and 1A, *Police Officer Rivoli's body-worn camera footage and still shot*; CCRB Ex. 2 at 00:57-03:25, *Respondent's body-worn camera footage*; Respondent Ex. A at 01:11-01:24, *Police Officer Vidal's body-worn camera footage*; CCRB Ex. 3A at 7-9, *Complainant's CCRB interview*)

Complainant did not appear to testify at trial.<sup>1</sup> Instead, the CCRB introduced into evidence the recording and accompanying transcript of her September 22, 2023, telephone interview with their investigator. (CCRB Ex. 3, 3A)

During the interview, Complainant recalled that at around 2300 hours on August 4, 2023,<sup>2</sup> she was sitting in her car, “laughing” with her brother and her cousin, as well as some other friends, who were outside of the vehicle. She recounted that a van pulled into the parking lot, the occupants got out and “came up into my vehicle, just opening up my vehicle door saying, license and registration, you wanted.” According to Complainant, as she was inquiring what she was wanted for, a male police officer pulled her out of her car. Complainant alleged that multiple officers “slammed me on top of somebody's car that was there. And after they slammed me on the vehicle, they were twisting my arm. They already had their cuffs on me. They were just twisting my arms, bending my arms back, everything.” (CCRB Ex. 3A at 7-8)

According to Complainant, her mother was on the scene and tried to inform the officers that Complainant suffers from a heart condition. She contended that after failing to get her into the unmarked van, the officers put her into a marked police car. Complainant asserted that the officers were “fighting me, choking me, calling me black b---h, everything, at the back door of the car.” She contended that the air conditioning was not on in the “blue and white” police car that she was placed in. Complainant asserted that she informed the officers, “I’m hot, I can’t breathe.” (CCRB Ex. 3A at 8-9)

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<sup>1</sup> Counsel for CCRB informed the tribunal that they had been in contact with Complainant. Although she stopped responding to their calls, CCRB sent an email informing Complainant of the date and time of the hearing.

<sup>2</sup> The tribunal takes judicial notice that these events took place late in the evening of August 3, 2023, and continued into August 4, 2023. The use of the August 4<sup>th</sup> date appears to have been an oversight by the CCRB investigator.

Later in the interview, Complainant insisted that she had told the investigator “everything” that happened multiple times, exclaiming, “I don’t want to keep talking about this.” In spite of her protests, the investigator persisted and eventually asked for more details about which officer choked Complainant and when it happened. In response, Complainant contended that “all” of the officers were “choking like pulling my sweater from my hood, pulling it back, choking my neck and I could not breathe -- I could not breathe.” She acknowledged that she could not see which officers were involved because they were behind her. Complainant remembered the sweatshirt pressing against her neck “a lot of times.” She alleged that “it was getting tighter because I started yelling, I couldn’t breathe that’s what my mother was saying ‘y’all going to kill my daughter, y’all going to kill my daughter.’” When asked by the investigator, Complainant denied fighting with the officers or resisting being taken into custody during the incident. (CCRB Ex. 3A at 42-45, 53-57, 65-66)

CCRB also entered into evidence body-worn camera footage which captured the incident. The following is a summary of Police Officer John Rivoli’s body-worn camera video recording, entered into evidence as CCRB’s Exhibit 1.

- 01:17-01:19** Respondent is standing by the open rear sliding door of a minivan. Another officer is attempting to walk Complainant to the car. She pulls her body away from the officer towards the ground while dragging her feet. He gets Complainant to the vehicle and she is facing door.
- 01:20-01:21** A third officer approaches from behind and places her hands on Complainant’s back. Respondent, who is standing slightly behind and to her left, grasps the back portion of the hood of Complainant’s sweatshirt with his left hand and pulls up. The three officers lift Complainant. Complainant braces first her left, then both feet against the door frame of the vehicle and pushes backwards.

- 01:22-01:26** Complainant's mother<sup>3</sup> states, "Y'all don't choke her. Do not do it." Respondent is still holding Complainant's hood.
- 01:27-01:28** Respondent is still next to the car; his hands are no longer visible. Someone off-screen states, "Tell her to calm down." Complainant's mother replies, "I'm telling her!"
- 01:29-01:32** Complainant twice states, "[You're] choking my neck!" Neither Respondent's hands nor Complainant's hood are visible.
- 01:33-01:50** Respondent and the other officers attempt to place Complainant in the RMP. She screams, "Don't touch me!"
- 01:51-01:57** Officer Rivoli walks away from Respondent and Complainant.

The following is a summary of Respondent's body-worn camera video recording, entered into evidence as CCRB's Exhibit 2.

- 00:57-01:16** Respondent arrives on scene and exits his RMP. He sprints toward a crowd of people and repeatedly shouts, "Move back!"
- 01:17-01:59** Respondent pushes members of the crowd back and then assists the officers who are struggling with Complainant, who is on the hood of a parked vehicle.
- 02:00-02:38** Respondent uses both of his hands to hold Complainant's right leg as another officer places her in handcuffs, which are secured behind her back.
- 02:39-02:51** The other officer lifts Complainant off of the hood and guides her toward the unmarked minivan with both of his arms wrapped around her left arm. Respondent walks toward the vehicle and stands by the open door. Complainant can be seen bending her knees, pulling her body down and to the right, while dragging her feet.
- 02:52-02:59** Respondent, who is standing to the left of and slightly behind Complainant, places his left hand on the hood of Complainant's sweatshirt and pulls up. His right hand is on Complainant's waist. He and the other two officers lift and move Complainant toward the open rear door of the RMP. Another officer's hands can be seen gripping Complainant's right arm. Complainant presses her feet against the door panel of the vehicle and pushes, moving backwards. The officers continue to try to attempt to place

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<sup>3</sup> The tribunal notes that both parties agreed that this female observer was the mother of Complainant.

Complainant into the car. Complainant continues pushing against the car with her feet.

**03:00-03:25** Complainant twice states, “[You’re] choking my neck.” Respondent can be heard saying, “Sweetie you gotta get in, you gotta get in,” as he pushes her waist with his right hand; his left hand is not visible.

Respondent offered the body-worn camera footage of Police Officer Vidal into evidence.

The following is a summary of the relevant portions of Respondent’s Exhibit A.

- 01:10-01:11 Respondent can be seen standing at the open door of the minivan with multiple officers; his left hand is pulling up on Complainant’s sweatshirt hood. Complainant has first one, then both feet braced against the door frame.
- 01:12-01:17 Respondent and two other officers attempt to push Complainant into the van. Complainant’s feet are still pushing against the car. Respondent is still holding the hood of Complainant’s sweatshirt. Complainant can be heard yelling, “[You’re] choking my neck.”
- 01:18-01:24 Complainant’s feet are back on the ground and Respondent lets go of her hood as she continues to yell, “[You’re] choking my neck.”

Respondent testified that when he arrived at the scene, there were approximately ten people gathered who were “very loud and getting in the officers’ way.” Respondent recalled that he moved them away from the Warrant officers who were attempting to handcuff Complainant. He described Complainant “violently resisting” by kicking at the officers and flailing her arms. Respondent recounted making a path to the unmarked van and seeing one of the officers struggling to walk Complainant to the open rear door. According to Respondent, he helped the officers get Complainant into the car by grabbing her arm with his right hand and placing his “left hand onto the back of her shoulder and back and I began pushing her forward inside the van.” Respondent asserted that while he was doing this, Complainant “used both her feet to brace herself on to the van edge and she kicked back. She threw her body weight back on us and she

braced herself and body using her feet.” He admitted that in response he “grabbed her sweater to prevent her from falling back,” but denied “pulling” the shirt. Respondent acknowledged that grabbing an arrestee’s shirt is not “consistent” with NYPD training on how to place an individual into a vehicle. (Tr. 20-21, 25-26, 58)

Respondent testified that during this time Complainant was “speaking to me directly and I was speaking to her directly. Telling her ‘hey sweetie, you need to get inside the van, please.’” He maintained that he never heard Complainant “gasping” or “choking,” nor did he see the sweatshirt pulled against Complainant’s neck. Respondent maintained that “from the moment the officers were attempting to place Complainant into handcuffs to the moment she was placed inside the RMP, she never stopped talking and screaming.” (Tr. 28-31, 39)

During cross-examination, Respondent denied hearing Complainant’s mother saying, “don’t choke her,” either on the date in question or when the body-worn camera footage was played in court. In addition, although he admitted during cross-examination that he could hear Complainant yelling, “[you’re] choking my neck” on the video footage, Respondent stated that he did not recall her saying that on the date in question. (Tr. 46-47, 50)

Police Officer Meisner testified that on the date in question, he was standing in front of Respondent, trying to keep the crowd away, while Respondent and the other officers were attempting to place Complainant into the unmarked van. According to Police Officer Meisner, Complainant’s voice grew louder as she continuously “screamed” throughout the encounter. Police Officer Meisner explained that officers are required to intervene if they observe another officer restricting a person’s breathing. He described some of the signs of restricted breathing, “If they’re not talking is one of the main ones. They’re turning blue. You know, gasping for air.” Police Officer Meisner denied hearing Complainant make any noises that would indicate that she



was unable to breathe and maintained that her voice grew louder as the incident progressed.

When asked, he acknowledged that police officers are not allowed to pull an arrestee by the back of the shirt. (Tr. 69-72, 77)

Respondent is charged with wrongfully using force by holding Complainant's sweatshirt against her neck, restricting her ability to breathe. It is undisputed that Respondent grabbed the hood of Complainant's sweatshirt when he was attempting to place her in a police vehicle. Patrol Guide 221-02 requires officers to "apply no more than the reasonable force necessary to gain control." The question for the tribunal is whether CCRB has proven by a preponderance of the credible evidence that Respondent wrongfully used force, which restricted Complainant's breathing, when he grabbed the hood of her sweatshirt. For the reasons set forth below, I find that they have.

Complainant did not testify before this tribunal. With regard to her interview with CCRB, it is well-settled that hearsay evidence is admissible in administrative proceedings and may form the sole basis for a finding of fact. However, the hearsay must be evaluated carefully to determine whether it is sufficiently reliable. In the absence of live testimony from Complainant, I carefully considered her prior statements in conjunction with the other evidence presented at trial.

In reviewing the interview, I found that while Complainant's version of events was generally consistent with the video footage, she exaggerated certain actions of the police officers while downplaying her own resistance. For example, Complainant accused officers of "slamming" her on the hood of the car and using offensive language when referring to her. Neither claim was supported by the body-worn camera footage. In addition, Complainant's assertion that she was not resisting arrest was directly contradicted by the videos which showed

her actively attempting to prevent the officers from taking her into custody at every point in the interaction. In-person questioning and cross-examination would have allowed counsel to explore and clarify these statements and inconsistencies.

However, early in the CCRB interview, Complainant referenced police officers “choking” her without providing any further details. Complainant tried to end the interview and told the investigator that she had nothing more to say. At this point, after she was prompted by the investigator, she asserted that “all” of the officers pulled her sweatshirt “a lot of times” causing her to be unable to breathe. The body-worn camera footage does not show any other officers taking hold of the sweatshirt. However, it does show Respondent grabbing the hood, pulling it upwards with the collar against her neck, and continuing to hold it in that manner for several seconds. A few seconds later Complainant yells, “[You’re] choking my neck,” which corroborates her statement to CCRB that she felt the shirt getting tighter around her neck making it difficult to breathe.

Similarly, I found Respondent’s testimony a self-serving attempt to avoid taking responsibility for his actions. For example, Respondent contended that he grabbed Complainant’s sweatshirt to prevent her from falling because she braced her legs against the door frame and pushed her weight back. However, both Police Officer Rivoli’s and Respondent’s body-camera footage show that Respondent had grabbed Complainant’s hood and lifted it before her legs came into contact with the car. I therefore find it is more likely that Respondent took hold of her sweatshirt in order to give himself leverage to push her into the car rather than prevent her from tumbling to the ground. (CCRB Ex. 2 at 02:52-02:53; CCRB Ex. 1 at 01:21-01:22)

In addition, Respondent, when recounting his “direct conversation” with Complainant, explicitly recalled saying, “hey sweetie you need to get inside the van, please.” He then contended that he did not hear Complainant yelling that she was “choking” until he saw it on the footage during trial. This claim was made even more unbelievable by the video footage showing him letting go of Complainant’s hood immediately after she yelled “[You’re] choking my neck.” (Resp. Ex. A at 01:18-01:24)

Finally, Respondent and Police Officer Meisner each claimed that Complainant was yelling and screaming unceasingly throughout the incident. However, she cannot be heard on the video yelling or even speaking during most of the time that Respondent was pulling on her hood. (CCRB Ex. 2 at 01:20-01:29; CCRB Ex. 3 at 02:51-03:01)

In the end, the most compelling evidence in this matter are the three body-worn camera recordings, which all show Respondent pulling Complainant’s hood up for several seconds until she complains that she is being “choked.” NYPD officers are trained to take great care with regard to any actions which may result in the restriction of an individual’s breathing. The neck is a particularly vulnerable spot and both Respondent and Police Officer Meisner acknowledged that officers are trained not to pull on an individual’s shirt during arrests. Respondent should have used a different method to assist the other officers in placing Complainant into the car.

When viewed all together, the credible evidence shows that it is more likely than not that Respondent’s actions put pressure on Complainant’s neck, which may have affected her ability to breathe. For the foregoing reasons, I find Respondent Guilty.

### PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department’s Disciplinary System Penalty Guidelines (“Matrix”), considered all relevant facts and

circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who has no formal disciplinary history, was appointed to the Department on July 2, 2018. He has been found Guilty of wrongfully using force against Complainant.

With regard to penalty, the CCRB has recommended the presumptive penalty for the use of non-deadly force resulting in no injury. I agree and, for the reasons set forth below, recommend the forfeiture of ten (10) vacation days. (Matrix at p. 23)

In the instant matter, Complainant was actively resisting being taken into custody and it took three officers, including Respondent, to attempt to get her into the van. In this case, the duration of the shirt making contact with Complainant's neck was brief and resulted in no injury. However, Respondent, who had been trained not to take actions which could hinder an individual's ability to breathe, should have avoided the unnecessary risk to Complainant by utilizing a different method to assist the other officers in placing her into the car.

A penalty of the loss of ten (10) vacation days is appropriate and makes it clear that officers must avoid using force which could affect an individual's breathing. Accordingly, I recommend that Respondent forfeit ten (10) vacation days.

**APPROVED**

MAY 26 2026  
*Jess Tisch*  
JESSICA S. TISCH  
POLICE COMMISSIONER

Respectfully submitted,

*Anne E. Stone*

Anne E. Stone  
Assistant Deputy Commissioner Trials



## POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD  
POLICE OFFICER MOHAMMAD ABDELFATTAH  
TAX REGISTRY NO. 965915  
DISCIPLINARY CASE NO. C-032701

Respondent was appointed to the Department on July 2, 2018. On his three most recent annual performance evaluations, he was rated “Exceptional” for 2023, 2024, and 2025. He has been awarded six medals for Meritorious Police Duty and twenty-one medals for Excellent Police Duty.

Respondent has no formal disciplinary history. In November 2022, Respondent was placed on Level 1 CCRB Monitoring; monitoring remains ongoing.

For your consideration.

Anne E. Stone  
Assistant Deputy Commissioner Trials